

SECTION 01 57 19

TEMPORARY ENVIRONMENTAL CONTROLS
MHAFB 20180628

PART 1 GENERAL

1.1 REFERENCES

The publications listed below form a part of this specification to the extent referenced. The publications are referred to within the text by the basic designation only.

U.S. ENVIRONMENTAL PROTECTION AGENCY (EPA)

EPA SW-846 (Third Edition; Update IV) Test Methods for Evaluating Solid Waste: Physical/Chemical Methods

U.S. NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA)

29 CFR 1910.120	Hazardous Waste Operations and Emergency Response
40 CFR 112	Oil Pollution Prevention
40 CFR 122.26	Storm Water Discharges (Applicable to State NPDES Programs, see section 123.25)
40 CFR 241	Guidelines for Disposal of Solid Waste
40 CFR 243	Guidelines for the Storage and Collection of Residential, Commercial, and Institutional Solid Waste
40 CFR 258	Subtitle D Landfill Requirements
40 CFR 260	Hazardous Waste Management System: General
40 CFR 261	Identification and Listing of Hazardous Waste
40 CFR 261.7	Residues of Hazardous Waste in Empty Containers
40 CFR 262	Standards Applicable to Generators of Hazardous Waste
40 CFR 262.31	Standards Applicable to Generators of Hazardous Waste-Labeling
40 CFR 262.34	Standards Applicable to Generators of Hazardous Waste-Accumulation Time
40 CFR 263	Standards Applicable to Transporters of Hazardous Waste

40 CFR 264	Standards for Owners and Operators of Hazardous Waste Treatment, Storage, and Disposal Facilities
40 CFR 265	Interim Status Standards for Owners and Operators of Hazardous Waste Treatment, Storage, and Disposal Facilities
40 CFR 266	Standards for the Management of Specific Hazardous Wastes and Specific Types of Hazardous Waste Management Facilities
40 CFR 268	Land Disposal Restrictions
40 CFR 273	Standards For Universal Waste Management
40 CFR 273.2	Standards for Universal Waste Management - Batteries
40 CFR 273.4	Standards for Universal Waste Management - Mercury Containing Equipment
40 CFR 273.5	Standards for Universal Waste Management - Lamps
40 CFR 279	Standards for the Management of Used Oil
40 CFR 300	National Oil and Hazardous Substances Pollution Contingency Plan
40 CFR 403	General Pretreatment Regulations for Existing and New Sources of Pollution
40 CFR 50	National Primary and Secondary Ambient Air Quality Standards
40 CFR 60	Standards of Performance for New Stationary Sources
40 CFR 61	National Emission Standards for Hazardous Air Pollutants
40 CFR 63	National Emission Standards for Hazardous Air Pollutants for Source Categories
40 CFR 64	Compliance Assurance Monitoring
40 CFR 745	Lead-Based Paint Poisoning Prevention in Certain Residential Structures
40 CFR 761	Polychlorinated Biphenyls (PCBs) Manufacturing, Processing, Distribution in Commerce, and Use Prohibitions
49 CFR 171	General Information, Regulations, and Definitions

49 CFR 172	Hazardous Materials Table, Special Provisions, Hazardous Materials Communications, Emergency Response Information, and Training Requirements
49 CFR 172.101	Hazardous Material Regulation-Purpose and Use of Hazardous Material Table
49 CFR 173	Shippers - General Requirements for Shipments and Packagings
49 CFR 178	Specifications for Packagings

1.2 DEFINITIONS

1.2.1 Class I and II Ozone Depleting Substance (ODS)

Class I ODS is defined in Section 602(a) of The Clean Air Act. A list of Class I ODS can be found on the EPA website at the following weblink.

<http://www.epa.gov/ozone/science/ods/classone.html>.

Class II ODS is defined in Section 602(s) of The Clean Air Act. A list of Class II ODS can be found on the EPA website at the following weblink.

<http://www.epa.gov/ozone/science/ods/classtwo.html>.

1.2.2 Contractor Generated Hazardous Waste

Contractor generated hazardous waste is materials that, if abandoned or disposed of, may meet the definition of a hazardous waste. These waste streams would typically consist of material brought on site by the Contractor to execute work, but are not fully consumed during the course of construction. Examples include, but are not limited to, excess paint thinners (i.e. methyl ethyl ketone, toluene), waste thinners, excess paints, excess solvents, waste solvents, excess pesticides, and contaminated pesticide equipment rinse water.

1.2.3 Electronics Waste

Electronics waste is discarded electronic devices intended for salvage, recycling, or disposal.

1.2.4 Environmental Pollution and Damage

Environmental pollution and damage is the presence of chemical, physical, or biological elements or agents which adversely affect human health or welfare; unfavorably alter ecological balances of importance to human life; affect other species of importance to humankind; or degrade the environment aesthetically, culturally or historically.

1.2.5 Environmental Protection

Environmental protection is the prevention/control of pollution and habitat disruption that may occur to the environment during construction. The control of environmental pollution and damage requires consideration of land, water, and air; biological and cultural resources; and includes management of visual aesthetics; noise; solid, chemical, gaseous, and liquid waste; radiant energy and radioactive material as well as other pollutants.

1.2.6 Hazardous Debris

As defined in paragraph SOLID WASTE, debris that contains listed hazardous waste (either on the debris surface, or in its interstices, such as pore structure) in accordance with 40 CFR 261. Hazardous debris also includes debris that exhibits a characteristic of hazardous waste in accordance with 40 CFR 261.

1.2.7 Hazardous Materials

Hazardous materials as defined in 49 CFR 171 and listed in 49 CFR 172.

Hazardous material is any material that: Is regulated as a hazardous material in accordance with 49 CFR 173; or requires a Safety Data Sheet (SDS) in accordance with 29 CFR 1910.120; or during end use, treatment, handling, packaging, storage, transportation, or disposal meets or has components that meet or have potential to meet the definition of a hazardous waste as defined by 40 CFR 261 Subparts A, B, C, or D. Designation of a material by this definition, when separately regulated or controlled by other sections or directives, does not eliminate the need for adherence to that hazard-specific guidance which takes precedence over this section for "control" purposes. Such material includes ammunition, weapons, explosive actuated devices, propellants, pyrotechnics, chemical and biological warfare materials, medical and pharmaceutical supplies, medical waste and infectious materials, bulk fuels, radioactive materials, and other materials such as asbestos, mercury, and polychlorinated biphenyls (PCBs).

1.2.8 Hazardous Waste

Hazardous Waste is any material that meets the definition of a solid waste and exhibit a hazardous characteristic (ignitability, corrosivity, reactivity, or toxicity) as specified in 40 CFR 261, Subpart C, or contains a listed hazardous waste as identified in 40 CFR 261, Subpart D.

1.2.9 Land Application

Land Application means spreading or spraying discharge water at a rate that allows the water to percolate into the soil. No sheeting action, soil erosion, discharge into storm sewers, discharge into defined drainage areas, or discharge into the "waters of the United States" must occur. Comply with federal, state, and local laws and regulations.

1.2.10 National Pollutant Discharge Elimination System (NPDES)

The NPDES permit program controls water pollution by regulating point sources that discharge pollutants into waters of the United States.

1.2.11 Oily Waste

Oily waste are those materials that are, or were, mixed with Petroleum, Oils, and Lubricants (POLs) and have become separated from that POLs. Oily wastes also means materials, including wastewaters, centrifuge solids, filter residues or sludges, bottom sediments, tank bottoms, and sorbents which have come into contact with and have been contaminated by, POLs and may be appropriately tested and discarded in a manner which is in compliance with other state and local requirements.

This definition includes materials such as oily rags, "kitty litter" sorbent clay and organic sorbent material. These materials may be land filled provided that: It is not prohibited in other state regulations or local ordinances; the amount generated is "de minimus" (a small amount); it is the result of minor leaks or spills resulting from normal process operations; and free-flowing oil has been removed to the practicable extent possible. Large quantities of this material, generated as a result of a major spill or in lieu of proper maintenance of the processing equipment, are a solid waste. As a solid waste, perform a hazardous waste determination prior to disposal. As this can be an expensive process, it is recommended that this type of waste be minimized through good housekeeping practices and employee education.

1.2.12 Regulated Waste

Regulated waste are solid wastes that have specific additional federal, state, or local controls for handling, storage, or disposal.

1.2.13 Sediment

Sediment is soil and other debris that have eroded and have been transported by runoff water or wind.

1.2.14 Solid Waste

Solid waste is a solid, liquid, semi-solid or contained gaseous waste. A solid waste can be a hazardous waste, non-hazardous waste, or non-Resource Conservation and Recovery Act (RCRA) regulated waste. Types of solid waste typically generated at construction sites may include:

1.2.14.1 Debris

Debris is non-hazardous solid material generated during the construction, demolition, or renovation of a structure that exceeds 2.5-inch particle size that is: a manufactured object; plant or animal matter; or natural geologic material (for example, cobbles and boulders), broken or removed concrete, masonry, and rock asphalt paving; ceramics; roofing paper and shingles. Inert materials [may] [may not] be reinforced with or contain ferrous wire, rods, accessories and weldments. A mixture of debris and other material such as soil or sludge is also subject to regulation as debris if the mixture is comprised primarily of debris by volume, based on visual inspection.

1.2.14.2 Green Waste

Green waste is the vegetative matter from landscaping, land clearing and grubbing, including, but not limited to, grass, bushes, scrubs, small trees and saplings, tree stumps and plant roots. Marketable trees, grasses and plants that are indicated to remain, be re-located, or be re-used are not included.

1.2.14.3 Material not regulated as solid waste

Material not regulated as solid waste is nuclear source or byproduct materials regulated under the Federal Atomic Energy Act of 1954 as amended; suspended or dissolved materials in domestic sewage effluent or irrigation

return flows, or other regulated point source discharges; regulated air emissions; and fluids or wastes associated with natural gas or crude oil exploration or production.

1.2.14.4 Non-Hazardous Waste

Non-hazardous waste is waste that is excluded from, or does not meet, hazardous waste criteria in accordance with 40 CFR 263.

1.2.14.5 Recyclables

Recyclables are materials, equipment and assemblies such as doors, windows, door and window frames, plumbing fixtures, glazing and mirrors that are recovered and sold as recyclable, [wiring,] [insulated/non-insulated copper wire cable,] [wire rope,] and structural components. It also includes commercial-grade refrigeration equipment with Freon removed, household appliances where the basic material content is metal, clean polyethylene terephthalate bottles, cooking oil, used fuel oil, textiles, high-grade paper products and corrugated cardboard, stackable pallets in good condition, clean crating material, and clean rubber/vehicle tires. Metal meeting the definition of lead contaminated or lead based paint contaminated [may] [may not] be included as recyclable if sold to a scrap metal company. Paint cans that meet the definition of empty containers in accordance with 40 CFR 261.7 may be included as recyclable if sold to a scrap metal company.

1.2.14.6 Surplus Soil

Surplus soil is existing soil that is in excess of what is required for this work, including aggregates intended, but not used, for on-site mixing of concrete, mortars, and paving. Contaminated soil meeting the definition of hazardous material or hazardous waste is not included and must be managed in accordance with paragraph HAZARDOUS MATERIAL MANAGEMENT.

1.2.14.7 Scrap Metal

This includes scrap and excess ferrous and non-ferrous metals such as reinforcing steel, structural shapes, pipe, and wire that are recovered or collected and disposed of as scrap. Scrap metal meeting the definition of hazardous material or hazardous waste is not included.

1.2.14.8 Wood

Wood is dimension and non-dimension lumber, plywood, chipboard, hardboard. Treated or painted wood that meets the definition of lead contaminated or lead based contaminated paint is not included. Treated wood includes, but is not limited to, lumber, utility poles, crossties, and other wood products with chemical treatment.

1.2.15 Surface Discharge

Surface discharge means discharge of water into drainage ditches, storm sewers, creeks or "waters of the United States". Surface discharges are discrete, identifiable sources and require a permit from the governing agency. Comply with federal, state, and local laws and regulations.

1.2.16 Wastewater

Wastewater is the used water and solids from a community that flow to a treatment plant.

1.2.16.1 Stormwater

Stormwater is any precipitation in an urban or suburban area that does not evaporate or soak into the ground, but instead collects and flows into storm drains, rivers, and streams.

1.2.17 Waters of the United States

Waters of the United States means Federally jurisdictional waters, including wetlands, that are subject to regulation under Section 404 of the Clean Water Act or navigable waters, as defined under the Rivers and Harbors Act.

1.2.18 Wetlands

Wetlands are those areas that are inundated or saturated by surface or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, a prevalence of vegetation typically adapted for life in saturated soil conditions.

1.2.19 Universal Waste

The universal waste regulations streamline collection requirements for certain hazardous wastes in the following categories: batteries, pesticides, mercury-containing equipment (for example, thermostats), and lamps (for example, fluorescent bulbs). The rule is designed to reduce hazardous waste in the municipal solid waste (MSW) stream by making it easier for universal waste handlers to collect these items and send them for recycling or proper disposal. These regulations can be found at [40 CFR 273](#).

1.3 SUBMITTALS

Government approval is required for submittals with a "G" designation; submittals not having a "G" designation are for information only. When used, a designation following the "G" designation identifies the office that will review the submittal for the Government. Submit the following in accordance with Section [01 33 00](#) SUBMITTAL PROCEDURES:

[SD-01 Preconstruction Submittals](#)

[Preconstruction Survey](#)

[Solid Waste Management Permit; G](#)

[Regulatory Notifications; G](#)

[Environmental Protection Plan; G](#)

[Stormwater Notice of Intent](#) (for NPDES coverage under the general permit for construction activities); [G](#)

[Dirt and Dust Control Plan; G](#)

[Employee Training Records; G](#)

Environmental Manager Qualifications; G

SD-06 Test Reports

Laboratory Analysis

Inspection Reports

Solid Waste Management Report; G

SD-07 Certificates

Employee Training Records; G

Erosion and Sediment Control Inspector Qualifications

SD-11 Closeout Submittals

Stormwater Pollution Prevention Plan Compliance Notebook; G

Stormwater Notice of Termination (for NPDES coverage under the general permit for construction activities); G

Waste Determination Documentation; G

Disposal Documentation for Hazardous and Regulated Waste; G

Assembled Employee Training Records; G

Solid Waste Management Permit; G

Solid Waste Management Report; G

Contractor Hazardous Material Inventory Log; G

Hazardous Waste/Debris Management; G

Regulatory Notifications; G

Sales Documentation; G

Contractor Certification

As-Built Topographic Survey

1.4 ENVIRONMENTAL PROTECTION REQUIREMENTS

Provide and maintain, during the life of the contract, environmental protection as defined. Plan for and provide environmental protective measures to control pollution that develops during construction practice. Plan for and provide environmental protective measures required to correct conditions that develop during the construction of permanent or temporary environmental features associated with the project. Protect the environmental resources within the project boundaries and those affected outside the limits of permanent work during the entire duration of this Contract. Comply with federal, state, and local regulations pertaining to

the environment, including water, air, solid waste, hazardous waste and substances, oily substances, and noise pollution.

Tests and procedures assessing whether construction operations comply with Applicable Environmental Laws may be required. Analytical work must be performed by qualified laboratories; and where required by law, the laboratories must be certified.

1.4.1 Conformance with the Environmental Management System

Perform work under this contract consistent with the policy and objectives identified in the installation's Environmental Management System (EMS). Perform work in a manner that conforms to objectives and targets of the environmental programs and operational controls identified by the EMS. Support Government personnel when environmental compliance and EMS audits are conducted by escorting auditors at the Project site, answering questions, and providing proof of records being maintained. Provide monitoring and measurement information as necessary to address environmental performance relative to environmental, energy, and transportation management goals. In the event an EMS nonconformance or environmental noncompliance associated with the contracted services, tasks, or actions occurs, take corrective and preventative actions. In addition, employees must be aware of their roles and responsibilities under the installation EMS and of how these EMS roles and responsibilities affect work performed under the contract.

Coordinate with the installation's EMS coordinator, (208)828-6351, to identify training needs associated with environmental aspects and the EMS, and arrange training or take other action to meet these needs. Provide training documentation to the Contracting Officer. Mountain Home Air Force Base Environmental Management Office (A7IE) will retain associated environmental compliance records. Make EMS Awareness training completion certificates available to Government auditors during EMS audits and include the certificates in the Employee Training Records. See paragraph EMPLOYEE TRAINING RECORDS.

1.5 QUALITY ASSURANCE

1.5.1 Preconstruction Survey and Protection of Features

This paragraph supplements the Contract Clause PROTECTION OF EXISTING VEGETATION, STRUCTURES, EQUIPMENT, UTILITIES, AND IMPROVEMENTS. Prior to start of any onsite construction activities, perform a [Preconstruction Survey](#) of the project site with the Contracting Officer, and take photographs showing existing environmental conditions in and adjacent to the site. Submit a report for the record. Include in the report a plan describing the features requiring protection under the provisions of the Contract Clauses, which are not specifically identified on the drawings as environmental features requiring protection along with the condition of trees, shrubs and grassed areas immediately adjacent to the site of work and adjacent to the Contractor's assigned storage area and access route(s), as applicable. The Contractor and the Contracting Officer will sign this survey report upon mutual agreement regarding its accuracy and completeness. Protect those environmental features included in the survey report and any indicated on the drawings, regardless of interference that their preservation may cause to the work under the Contract.

1.5.2 Regulatory Notifications

Provide regulatory notification requirements in accordance with federal, state and local regulations. Submit copies of regulatory notifications to the Contracting Officer at least 14 days prior to commencement of work activities. Typically, regulatory notifications must be provided for the following (this listing is not all-inclusive): demolition, renovation, NPDES defined site work, construction, removal or use of a permitted air emissions source, and remediation of controlled substances (asbestos, hazardous waste, lead paint).

1.5.3 Environmental Brief

Attend an environmental brief to be included in the preconstruction meeting. Provide the following information: types, quantities, and use of hazardous materials that will be brought onto the installation; and types and quantities of wastes/wastewater that may be generated during the Contract. Discuss the results of the Preconstruction Survey at this time.

Prior to initiating any work on site, meet with the Contracting Officer and installation Environmental Office to discuss the proposed Environmental Protection Plan (EPP). Develop a mutual understanding relative to the details of environmental protection, including measures for protecting natural and cultural resources, required reports, required permits, permit requirements (such as mitigation measures), and other measures to be taken.

1.5.4 Environmental Manager

Appoint in writing an Environmental Manager for the project site. The Environmental Manager is directly responsible for coordinating contractor compliance with federal, state, local, and installation requirements. The Environmental Manager must ensure compliance with Hazardous Waste Program requirements (including hazardous waste handling, storage, manifesting, and disposal); implement the EPP; ensure environmental permits are obtained, maintained, and closed out; ensure compliance with Stormwater Program requirements; ensure compliance with Hazardous Materials (storage, handling, and reporting) requirements; and coordinate any remediation of regulated substances (lead, asbestos, PCB transformers). This can be a collateral position; however, the person in this position must be trained to adequately accomplish the following duties: ensure waste segregation and storage compatibility requirements are met; inspect and manage Satellite Accumulation areas; ensure only authorized personnel add wastes to containers; ensure Contractor personnel are trained in 40 CFR requirements in accordance with their position requirements; coordinate removal of waste containers; and maintain the Environmental Records binder and required documentation, including environmental permits compliance and close-out. Submit [Environmental Manager Qualifications](#) to the Contracting Officer.

1.5.5 Employee Training Records

Prepare and maintain [Employee Training Records](#) throughout the term of the contract meeting applicable 40 CFR requirements. Provide Employee Training Records in the Environmental Records Binder. Ensure every employee completes a program of classroom instruction or on-the-job training that teaches them to perform their duties in a way that ensures compliance with federal, state and local regulatory requirements for RCRA Large Quantity Generator. Provide a Position Description for each employee, by

subcontractor, based on the Davis-Bacon Wage Rate designation or other equivalent method, evaluating the employee's association with hazardous and regulated wastes. This Position Description will include training requirements as defined in [40 CFR 265](#) for a Large Quantity Generator facility.] Submit these [Assembled Employee Training Records](#) to the Contracting Officer at the conclusion of the project, unless otherwise directed.

Train personnel to meet EPA and state requirements. Conduct environmental protection/pollution control meetings for personnel prior to commencing construction activities. Contact additional meetings for new personnel and when site conditions change. Include in the training and meeting agenda: methods of detecting and avoiding pollution; familiarization with statutory and contractual pollution standards; installation and care of devices, vegetative covers, and instruments required for monitoring purposes to ensure adequate and continuous environmental protection/pollution control; anticipated hazardous or toxic chemicals or wastes, and other regulated contaminants; recognition and protection of archaeological sites, artifacts, waters of the United States, and endangered species and their habitat that are known to be in the area. Provide copy of the [Erosion and Sediment Control Inspector](#) Qualifications as defined by EPA.

1.5.6 Non-Compliance Notifications

The Contracting Officer will notify the Contractor in writing of any observed noncompliance with federal, state or local environmental laws or regulations, permits, and other elements of the Contractor's EPP. After receipt of such notice, inform the Contracting Officer of the proposed corrective action and take such action when approved by the Contracting Officer. The Contracting Officer may issue an order stopping all or part of the work until satisfactory corrective action has been taken. No time extensions will be granted or equitable adjustments allowed for any such suspensions. This is in addition to any other actions the Contracting Officer may take under the contract, or in accordance with the Federal Acquisition Regulation or Federal Law.

1.6 ENVIRONMENTAL PROTECTION PLAN

The purpose of the EPP is to present an overview of known or potential environmental issues that must be considered and addressed during construction. Incorporate construction related objectives and targets from the installation's EMS into the EPP. Include in the EPP measures for protecting natural and cultural resources, required reports, and other measures to be taken. Meet with the Contracting Officer or Contracting Officer Representative to discuss the EPP and develop a mutual understanding relative to the details for environmental protection including measures for protecting natural resources, required reports, and other measures to be taken. Submit the EPP within 15 days after Contract award and not less than 10 days before the preconstruction meeting. Revise the EPP throughout the project to include any reporting requirements, changes in site conditions, or contract modifications that change the project scope of work in a way that could have an environmental impact. No requirement in this section will relieve the Contractor of any applicable federal, state, and local environmental protection laws and regulations. During Construction, identify, implement, and submit for approval any additional requirements to be included in the EPP. Maintain the current version onsite.

The EPP includes, but is not limited to, the following elements:

1.6.1 General Overview and Purpose

1.6.1.1 Descriptions

A brief description of each specific plan required by environmental permit or elsewhere in this Contract such as stormwater pollution prevention plan, spill control plan, solid waste management plan, wastewater management plan, air pollution control plan, contaminant prevention plan, a historical, archaeological, cultural resources, biological resources and wetlands plan, traffic control plan Hazardous, Toxic and Radioactive Waste (HTRW) Plan.

1.6.1.2 Duties

The duties and level of authority assigned to the person(s) on the job site who oversee environmental compliance, such as who is responsible for adherence to the EPP, who is responsible for spill cleanup and training personnel on spill response procedures, who is responsible for manifesting hazardous waste to be removed from the site (if applicable), and who is responsible for training the Contractor's environmental protection personnel.

1.6.1.3 Procedures

A copy of any standard or project-specific operating procedures that will be used to effectively manage and protect the environment on the project site.

1.6.1.4 Communications

Communication and training procedures that will be used to convey environmental management requirements to Contractor employees and subcontractors.

1.6.1.5 Contact Information

Emergency contact information contact information (office phone number, cell phone number, and e-mail address).

1.6.2 General Site Information

1.6.2.1 Drawings

Drawings showing locations of proposed temporary excavations or embankments for haul roads, stream crossings, jurisdictional wetlands, material storage areas, structures, sanitary facilities, storm drains and conveyances, and stockpiles of excess soil.

1.6.2.2 Work Area

Work area plan showing the proposed activity in each portion of the area and identify the areas of limited use or nonuse. Include measures for marking the limits of use areas, including methods for protection of features to be preserved within authorized work areas and methods to control runoff and to contain materials on site, and a traffic control plan.

1.6.2.3 Documentation

A letter signed by an officer of the firm appointing the Environmental Manager and stating that person is responsible for managing and implementing the Environmental Program as described in this contract. Include in this letter the Environmental Manager's authority to direct the removal and replacement of non-conforming work.

1.6.3 Management of Natural Resources

- a. Land resources
- b. Tree protection
- c. Replacement of damaged landscape features
- d. Temporary construction
- e. Fish and wildlife resources

1.6.4 Protection of Historical and Archaeological Resources

- a. Objectives
- b. Methods

1.6.5 Stormwater Management and Control

- a. Ground cover
- b. Erodible soils
- c. Temporary measures
 - (1) Structural Practices
 - (2) Temporary and permanent stabilization
- d. Effective selection, implementation and maintenance of Best Management Practices (BMPs).

1.6.6 Protection of the Environment from Waste Derived from Contractor Operations

Control and disposal of solid and sanitary waste. Control and disposal of hazardous waste.

This item consist of the management procedures for hazardous waste to be generated. The elements of those procedures will coincide with the Installation Hazardous Waste Management Plan. The Contracting Officer will provide a copy of the Installation Hazardous Waste Management Plan. As a minimum, include the following:

- a. List of the types of hazardous wastes expected to be generated
- b. Procedures to ensure a written waste determination is made for appropriate wastes that are to be generated

- c. Sampling/analysis plan, including laboratory method(s) that will be used for waste determinations and copies of relevant laboratory certifications
- d. Methods and proposed locations for hazardous waste accumulation/storage (that is, in tanks or containers)
- e. Management procedures for storage, labeling, transportation, and disposal of waste (treatment of waste is not allowed unless specifically noted)
- f. Management procedures and regulatory documentation ensuring disposal of hazardous waste complies with Land Disposal Restrictions (40 CFR 268)
- g. Management procedures for recyclable hazardous materials such as lead-acid batteries, used oil, and similar
- h. Used oil management procedures in accordance with 40 CFR 279; Hazardous waste minimization procedures
- i. Plans for the disposal of hazardous waste by permitted facilities; and Procedures to be employed to ensure required employee training records are maintained.

1.6.7 Prevention of Releases to the Environment

Procedures to prevent releases to the environment include development of a MHAFFB Contractor Site Specific Contingency Plan to provide procedures, instructions, and reports to be used in the event of an unforeseen spill/release of a substance (40 CFR 68, 40 CFR 302, and 40 CFR 355).

Notifications in the event of a release to the environment

1.6.8 Regulatory Notification and Permits

List what notifications and permit applications must be made. Some permits require up to 180 days to obtain. Demonstrate that those permits have been obtained or applied for by including copies of applicable environmental permits. The EPP will not be approved until the permits have been obtained.

1.6.9 Clean Air Act Compliance

1.6.9.1 Haul Route

Submit truck and material haul routes along with a [Dirt and Dust Control Plan](#) for controlling dirt, debris, and dust on Installation roadways. As a minimum, identify in the plan the subcontractor and equipment for cleaning along the haul route and measures to reduce dirt, dust, and debris from roadways.

1.6.9.2 Pollution Generating Equipment

Identify air pollution generating equipment or processes that may require federal, state, or local permits under the Clean Air Act. Determine requirements based on any current installation permits and the impacts of the project. Provide a list of all fixed or mobile equipment, machinery or

operations that could generate air emissions during the project to the Contracting Officer.

1.6.9.3 Stationary Internal Combustion Engines

Identify portable and stationary internal combustion engines that will be supplied, used or serviced. Comply with 40 CFR 60 Subpart IIII, 40 CFR 60 Subpart JJJJ, 40 CFR 63 Subpart ZZZZ, and local regulations as applicable. At minimum, include the make, model, serial number, manufacture date, size (engine brake horsepower), and EPA emission certification status of each engine. Maintain applicable records and log hours of operation and fuel use. Logs must include reasons for operation and delineate between emergency and non-emergency operation.

1.6.9.4 Refrigerants

Identify management practices to ensure that heating, ventilation, and air conditioning (HVAC) work involving refrigerants complies with 40 CFR 82 requirements. Technicians must be certified, maintain copies of certification on site, use certified equipment and log work that requires the addition or removal of refrigerant. Any refrigerant reclaimed is the property of the Government, coordinate with the Installation Environmental Office to determine the appropriate turn in location.

1.6.9.5 Air Pollution-engineering Processes

Identify planned air pollution-generating processes and management control measures (including, but not limited to, spray painting, abrasive blasting, demolition, material handling, fugitive dust, and fugitive emissions). Log hours of operations and track quantities of materials used.

1.6.9.6 Compliant Materials

Provide the Government a list of and SDSs for all hazardous materials proposed for use on site. Materials must be compliant with all Clean Air Act regulations for emissions including solvent and volatile organic compound contents, and applicable National Emission Standards for Hazardous Air Pollutants requirements. The Government may alter or limit use of specific materials as needed to meet installation permit requirements for emissions.

1.7 LICENSES AND PERMITS

Obtain licenses and permits required for the construction of the project and in accordance with FAR 52.236-7 Permits and Responsibilities. Notify the Government of all general use permitted equipment the Contractor plans to use on site. This paragraph supplements the Contractor's responsibility under FAR 52.236-7 Permits and Responsibilities.

1.8 ENVIRONMENTAL RECORDS BINDER

Maintain on-site a separate three-ring Environmental Records Binder and submit at the completion of the project. Make separate parts within the binder that correspond to each submittal listed under paragraph CLOSEOUT SUBMITTALS in this section.

1.9 SOLID WASTE MANAGEMENT PERMIT

Provide the Contracting Officer with written notification of the quantity of anticipated solid waste or debris that is anticipated or estimated to be generated by construction. Include in the report the locations where various types of waste will be disposed or recycled. Include letters of acceptance from the receiving location or as applicable; submit one copy of the receiving location state and local Solid Waste Management Permit or license showing such agency's approval of the disposal plan before transporting wastes off Government property.

1.9.1 Solid Waste Management Report

Monthly, submit a solid waste disposal report to the Contracting Officer. For each waste, the report will state the classification (using the definitions provided in this section), amount, location, and name of the business receiving the solid waste.

1.10 FACILITY HAZARDOUS WASTE GENERATOR STATUS

MHAFB is designated as a Large Quantity Generator. Meet the regulatory requirements of this generator designation for any work conducted within the boundaries of this Installation. Comply with provisions of federal, state, and local regulatory requirements applicable to this generator status regarding training and storage, handling, and disposal of construction derived wastes.

PART 2 PRODUCTS

Not Used

PART 3 EXECUTION

3.1 PROTECTION OF NATURAL RESOURCES

Minimize interference with, disturbance to, and damage to fish, wildlife, and plants including their habitat to protect threatened, endangered, species of concern, migratory birds, or otherwise protected animal and plant species, including their habitat in accordance with the MHAFB Integrated Natural Resources Management Plan (INRMP), federal, state, regional, and local laws and regulations. Protection of migratory birds, particularly burrowing owls, is of concern on MHAFB. The protection of rare, threatened, and endangered animal and plant species identified, including their habitats, is the Contractor's responsibility.

Confine activities, equipment staging, and material staging within pre-approved site boundaries. Any unapproved or unnecessary destruction of land resources shall be corrected at the Contractor's expense to the satisfaction of the Contracting Officer.

Preserve the natural resources within the project boundaries and outside the limits of permanent work. Restore to an equivalent or improved condition upon completion of work that is consistent with the requirements of the MHAFB Environmental Management Office or as otherwise specified.

Do not destroy any occupied bird nests. Burrowing owls may be present from March through July and occupy abandoned badger holes. Coordinate with the

Contracting Officer in February or March to perform site surveys for burrows or nests in order to prevent conflicts during construction.

Do not disturb, drive through, or fill areas designated as wetlands, for example playas.

3.1.1 Vegetation

Except in areas to be cleared, do not remove, cut, deface, injure, or destroy trees or shrubs without the Contracting Officer's permission. Do not fasten or attach ropes, cables, or guys to existing nearby trees for anchorages unless authorized by the Contracting Officer and Installation Environmental Management Office. Where such use of attached ropes, cables, or guys is authorized, the Contractor is responsible for any resultant damage.

Protect existing trees that are to remain to ensure they are not injured, bruised, defaced, or otherwise damaged by construction operations. Remove displaced rocks from uncleared areas. Coordinate with the Contracting Officer and Installation Environmental Office to determine appropriate action for trees and other landscape features scarred or damaged by equipment operations.

Do not kill, drive on, burn, or otherwise destroy sagebrush.

Coordinate with the Contracting Officer and Installation Environmental Management Office regarding suitable herbicide pretreatment, seed mixes, seeding method, and timing for post construction soil stabilization.

3.2 STORMWATER

Do not discharge stormwater from construction sites to the sanitary sewer. If the water is noted or suspected of being contaminated, it may only be released to the storm drain system if the discharge is specifically permitted. Obtain authorization in advance from the Contracting Officer for any release of contaminated water.

3.2.1 Construction General Permit

Provide a Construction General Permit as required by [40 CFR 122.26](#) or EPA General Permit. Under the terms and conditions of the permit, install, inspect, maintain BMPs, prepare stormwater erosion and sediment control inspection reports, and submit SWPPP inspection reports. Maintain construction operations and management in compliance with the terms and conditions of the general permit for stormwater discharges from construction activities.

3.2.1.1 Stormwater Pollution Prevention Plan

Submit a project-specific Stormwater Pollution Prevention Plan (SWPPP) to the Contracting Officer for approval, prior to the commencement of work. The SWPPP must meet the requirements of [40 CFR 122.26](#) and the EPA General Permit for stormwater discharges from construction sites.

Include the following:

- a. Comply with terms of the EPA general permit for stormwater discharges from construction activities. Prepare SWPPP in accordance with EPA requirements. Use EPA guide Developing your Stormwater Pollution Prevention Plan located at <http://water.epa.gov/polwaste/npdes/stormwater/Stormwater-Pollution-Prevention-Plans-for-Construction-Activities.cfm> to prepare the SWPPP.]
- b. Select applicable BMPs from EPA Fact Sheets located at <http://water.epa.gov/polwaste/npdes/swbmp/Construction-Site-StormWater-Run-Off-Control.cfm> or in accordance with applicable state or local requirements. Also, refer to the "Catalog of Stormwater Best Management Practices for Idaho Cities and Counties" which can be found on Idaho Department of Environmental Quality website (www.deq.idaho.gov).
- c. Include a completed copy of the Notice of Intent, BMP Inspection Report Template, and Stormwater Notice of Termination, except for the effective date.
- d. Comply with additional requirements provided in Section 01 57 19.01 20 SUPPLEMENTAL TEMPORARY ENVIRONMENTAL CONTROLS]

3.2.1.2 Stormwater Notice of Intent for Construction Activities

Prepare and submit the Notice of Intent for NPDES coverage under the general permit for construction activities to the Contracting Officer for review and approval.

Submit the approved NOI and appropriate permit fees onto the appropriate federal or state agency for approval. No land disturbing activities may commence without permit coverage. Maintain an approved copy of the SWPPP at the onsite construction office, and continually update as regulations require, reflecting current site conditions.

3.2.1.3 Inspection Reports

Submit "Inspection Reports" to the Contracting Officer in accordance with EPA Construction General Permit.

3.2.1.4 Stormwater Pollution Prevention Plan Compliance Notebook

Create and maintain a three ring binder of documents that demonstrate compliance with the Construction General Permit. Include a copy of the permit Notice of Intent, proof of permit fee payment, SWPPP and SWPPP update amendments, inspection reports and related corrective action records, copies of correspondence with the EPA, and a copy of the permit Notice of Termination in the binder. At project completion, the notebook becomes property of the Government. Provide the compliance notebook to the Contracting Officer.

3.2.1.5 Stormwater Notice of Termination for Construction Activities

Submit a Notice of Termination to the Contracting Officer for the Installation Environmental Office to review and approve once construction is complete and final stabilization has been achieved on all portions of the site for which the permittee is responsible. Once approved, submit the Notice of Termination to the appropriate federal agency for processing.

3.2.2 Erosion and Sediment Control Measures

Provide erosion and sediment control measures in accordance with state and local laws and regulations. Preserve vegetation to the maximum extent practicable.

Erosion control inspection reports may be compiled as part of a stormwater pollution prevention plan inspection reports.

3.2.2.1 Erosion Control

Prevent erosion by mulching, Compost Blankets, Geotextiles, temporary slope drains. Stabilize slopes by chemical stabilization, sodding, seeding, or such combination of these methods necessary for effective erosion control. Use of hay bales is prohibited.

3.2.2.2 Sediment Control Practices

Implement sediment control practices to divert flows from exposed soils, temporarily store flows, or otherwise limit runoff and the discharge of pollutants from exposed areas of the site. Implement sediment control practices prior to soil disturbance and prior to creating areas with concentrated flow, during the construction process to minimize erosion and sediment laden runoff. Include the following devices: silt fence, temporary diversion dikes, storm drain inlet protection. Location and details of installation and construction are indicated on the drawings.]

3.2.3 Work Area Limits

Mark the areas that need not be disturbed under this Contract prior to commencing construction activities. Mark or fence isolated areas within the general work area that are not to be disturbed. Protect monuments and markers before construction operations commence. Where construction operations are to be conducted during darkness, any markers must be visible in the dark. Personnel must be knowledgeable of the purpose for marking and protecting particular objects.

3.2.4 Contractor Facilities and Work Areas

Place field offices, staging areas, stockpile storage, and temporary buildings in areas designated on the drawings or as directed by the Contracting Officer. Move or relocate the Contractor facilities only when approved by the Government. Provide erosion and sediment controls for onsite borrow and spoil areas to prevent sediment from entering nearby waters. Control temporary excavation and embankments for plant or work areas to protect adjacent areas.

3.3 SURFACE AND GROUNDWATER

3.3.1 Cofferdams, Diversions, and Dewatering

Construction operations for dewatering must be constantly controlled to maintain compliance with existing state water quality standards and designated uses of the surface water body. Comply with Idaho state water quality standards and anti-degradation provisions and the Clean Water Act Section 404. Do not discharge excavation ground water to the sanitary sewer, storm drains, or to surface waters without prior specific

authorization in writing from the Installation Environmental Office. Discharge of hazardous substances will not be permitted under any circumstances. Use sediment control BMPs to prevent construction site runoff from directly entering any storm drain or surface waters. Please see the 'Catalog of Stormwater Best Management Practices for Idaho Cities and Counties' document for reference which can be found on the Idaho Department of Environmental Quality website.

If the construction dewatering is noted or suspected of being contaminated, it may only be released to the storm drain system if the discharge is specifically permitted. Obtain authorization for any contaminated groundwater release in advance from the Installation Environmental Officer and the federal or state authority, as applicable. Discharge of hazardous substances will not be permitted under any circumstances.

3.3.2 Waters of the United States

Do not enter, disturb, destroy, or allow discharge of contaminants into waters of the United States.

3.4 PROTECTION OF CULTURAL RESOURCES

3.4.1 Archaeological Resources

If, during excavation or other construction activities, any previously unidentified or unanticipated historical, archaeological, and cultural resources are discovered or found, activities that may damage or alter such resources will be suspended. Resources covered by this paragraph include, but are not limited to: any human skeletal remains or burials; artifacts; shell, midden, bone, charcoal, or other deposits; rock or coral alignments, pavings, wall, or other constructed features; and any indication of agricultural or other human activities. Upon such discovery or find, immediately notify the Contracting Officer so that the appropriate authorities may be notified and a determination made as to their significance and what, if any, special disposition of the finds should be made. Cease all activities that may result in impact to or the destruction of these resources. Secure the area and prevent employees or other persons from trespassing on, removing, or otherwise disturbing such resources. The Government retains ownership and control over archaeological resources.

3.4.2 Historical Resources

Existing historical resources within the work area are shown on the drawings. Protect these resources and be responsible for their preservation during the life of the Contract.

3.5 AIR RESOURCES

Equipment operation, activities, or processes will be in accordance with 40 CFR 64 and IDAPA 58.01.01.

3.5.1 Preconstruction Air Permits

Notify the Air Program Manager, through the Contracting Officer, at least 6 months prior to bringing equipment, assembled or unassembled, onto the Installation, so that air permits can be secured. Necessary permitting time must be considered in regard to construction activities. Clean Air Act

(CAA) and Rules for Control of Air Pollution in Idaho (IDAPA 58.01.01) permits must be obtained prior to bringing equipment, assembled or unassembled, onto the Installation.

3.5.2 Oil or Dual-fuel Boilers and Furnaces

Provide product data and details for new, replacement, or relocated fuel fired boilers, heaters, or furnaces to the Installation Environmental Office (Air Program Manager) through the Contracting Officer. Data to be reported include: equipment purpose (water heater, building heat, process), manufacturer, model number, serial number, fuel type (oil type, gas type) size (MMBTU heat input). Provide in accordance with paragraph PRECONSTRUCTION AIR PERMITS.

3.5.3 Burning

Burning is prohibited on MHAFB.

3.5.4 Class I and II ODS Prohibition

Class I and II ODS are Government property and must be returned to the Government for appropriate management. Coordinate with the Installation Environmental Office to determine the appropriate location for turn in of all reclaimed refrigerant.

3.5.5 Accidental Venting of Refrigerant

Accidental venting of a refrigerant is a release and must be reported immediately to the Contracting Officer.

3.5.6 EPA Certification Requirements

Heating and air conditioning technicians must be certified through an EPA-approved program. Maintain copies of certifications at the employees' places of business; technicians must carry certification wallet cards, as provided by environmental law.

3.5.7 Dust Control

Keep dust down at all times, including during nonworking periods. Sprinkle or treat, with dust suppressants, the soil at the site, haul roads, and other areas disturbed by operations. Dry power brooming will not be permitted. Instead, use vacuuming, wet mopping, wet sweeping, or wet power brooming. Only wet cutting will be permitted for cutting concrete blocks, concrete, and bituminous concrete.

3.5.7.1 Particulates

Dust particles, aerosols and gaseous by-products from construction activities, and processing and preparation of materials (such as from asphaltic batch plants) must be controlled at all times, including weekends, holidays, and hours when work is not in progress. Maintain excavations, stockpiles, haul roads, permanent and temporary access roads, plant sites, spoil areas, borrow areas, and other work areas within or outside the project boundaries free from particulates that would exceed 40 CFR 50, and IDAPA 58.01.01 air pollution standards or that would cause a hazard or a nuisance. Sprinkling, chemical treatment of an approved type, baghouse,

scrubbers, electrostatic precipitators, or other methods will be permitted to control particulates in the work area. Sprinkling, to be efficient, must be repeated to keep the disturbed area damp. Provide sufficient, competent equipment available to accomplish these tasks. Perform particulate control as the work proceeds and whenever a particulate nuisance or hazard occurs. Comply with state and local visibility regulations.

3.5.7.2 Abrasive Blasting

Blasting operations cannot be performed without prior approval of the Installation Air Program Manager. The use of silica sand is prohibited in sandblasting.

Provide tarpaulin drop cloths and windscreens to enclose abrasive blasting operations to confine and collect dust, abrasive agent, paint chips, and other debris. Perform work involving removal of hazardous material in accordance with 29 CFR 1910.

3.5.8 Odors

Control odors from construction activities. The odors must be in compliance with state regulations and local ordinances and may not constitute a health hazard.

3.6 WASTE MINIMIZATION

Minimize the use of hazardous materials and the generation of waste. Include procedures for pollution prevention/ hazardous waste minimization in the Hazardous Waste Management Section of the EPP.

3.6.1 Salvage, Reuse and Recycle

Identify anticipated materials and waste for salvage, reuse, and recycling. Describe actions to promote material reuse, resale or recycling. To the extent practicable, all scrap metal must be sent for reuse or recycling and will not be disposed of in a landfill.

Include the name, physical address, and telephone number of the hauler, if transported by a franchised solid waste hauler. Include the destination and, unless exempted, provide a copy of the state or local permit (cover) or license for recycling.

3.6.2 Nonhazardous Solid Waste Diversion Report

Maintain an inventory of nonhazardous solid waste diversion and disposal of construction and demolition debris. Submit a report to the Contracting Officer at the end of the project or on the first working day each month for projects lasting more than 30 days. Include the following in the report:

Construction and Demolition (C&D) Debris disposed	[_____] [cubic yards][tons],[cubic meters] as appropriate
C&D Debris Recycled	[_____] [cubic yards][tons],[cubic meters] as appropriate

Construction and Demolition (C&D) Debris disposed	[_____] [cubic yards][tons],[cubic meters] as appropriate
Total C&D Debris Generated	[_____] [cubic yards][tons],[cubic meters] as appropriate

3.7 WASTE MANAGEMENT AND DISPOSAL

3.7.1 Waste Determination Documentation

All potentially hazardous solid waste streams that are not subject to a specific exclusion or exemption from the hazardous waste regulations (e.g. scrap metal, domestic sewage) or subject to special rules, (lead-acid batteries and precious metals) must be characterized in accordance with the requirements of [40 CFR 261](#) or corresponding applicable state or local regulations. Base waste determination on user knowledge of the processes and materials used, and analytical data when necessary. Consult with the Installation environmental staff for guidance on specific requirements. Attach support documentation to the Waste Determination form. As a minimum, provide a Waste Determination form for the following waste (this listing is not inclusive): oil- and latex -based painting and caulking products, solvents, adhesives, aerosols, petroleum products, and containers of the original materials.

3.7.1.1 Sampling and Analysis of Waste

3.7.1.1.1 Waste Sampling

Sample waste in accordance with [EPA SW-846](#). Clearly mark each sampled drum or container with the Contractor's identification number, and cross reference to the chemical analysis performed.

3.7.1.1.2 Laboratory Analysis

Follow the analytical procedure and methods in accordance with the [40 CFR 261](#). Provide analytical results and reports performed to the Contracting Officer.

3.7.1.1.3 Analysis Type

Identify hazardous waste by analyzing for the following characteristics: ignitability, corrosivity, reactivity, toxicity based on TCLP results.

3.7.2 Solid Waste Management

3.7.2.1 Solid Waste Management Report

Prices paid or received do not have to be reported to the Contracting Officer unless required by other provisions or specifications of this Contract or public law.

3.7.2.2 Control and Management of Solid Wastes

Pick up solid wastes, and place in covered containers that are regularly emptied. Do not prepare or cook food on the project site. Prevent contamination of the site or other areas when handling and disposing of

wastes. At project completion, leave the areas clean. Employ segregation measures so that no hazardous or toxic waste will become co-mingled with non-hazardous solid waste. Transport solid waste off Government property and dispose of it in compliance with 40 CFR 260, state, and local requirements for solid waste disposal. A Subtitle D RCRA permitted landfill is the minimum acceptable offsite solid waste disposal option. Verify that the selected transporters and disposal facilities have the necessary permits and licenses to operate. Solid waste disposal offsite must comply with most stringent local, state, and federal requirements, including 40 CFR 241, 40 CFR 243, and 40 CFR 258.

Manage hazardous material used in construction, including but not limited to, aerosol cans, waste paint, cleaning solvents, contaminated brushes, and used rags, in accordance with 49 CFR 173.

3.7.3 Control and Management of Hazardous Waste

Do not dispose of hazardous waste on Government property. Do not discharge any waste to a sanitary sewer, storm drain, or to surface waters or conduct waste treatment or disposal on Government property without written approval of the Contracting Officer.

3.7.3.1 Hazardous Waste/Debris Management

Identify construction activities that will generate hazardous waste or debris. Provide a documented waste determination for resultant waste streams. Identify, label, handle, store, and dispose of hazardous waste or debris in accordance with federal, state, and local regulations, including 40 CFR 261, 40 CFR 262, 40 CFR 263, 40 CFR 264, 40 CFR 265, 40 CFR 266, and 40 CFR 268.

Manage hazardous waste in accordance with the approved Hazardous Waste Management Section of the EPP. Store hazardous wastes in approved containers in accordance with 49 CFR 173 and 49 CFR 178. Hazardous waste generated within the confines of Government facilities is identified as being generated by the Government. Prior to removal of any hazardous waste from Government property, hazardous waste manifests must be signed by personnel from the Installation Environmental Office. Do not bring hazardous waste onto Government property. Provide the Contracting Officer with a copy of waste determination documentation for any solid waste streams that have any potential to be hazardous waste or contain any chemical constituents listed in 40 CFR 372-SUBPART D.

3.7.3.2 Waste Storage/Satellite Accumulation/90 Day Storage Areas

Accumulate hazardous waste at satellite accumulation points and in compliance with 40 CFR 262.34 and applicable state or local regulations. Individual waste streams will be limited to 55 gallons of accumulation (or 1 quart for acutely hazardous wastes). If the Contractor expects to generate hazardous waste at a rate and quantity that makes satellite accumulation impractical, the Contractor may request a temporary 90 day accumulation point be established. Submit a request in writing to the Contracting Officer and provide the following information (Attach Site Plan to the Request):

Contract Number	[_____]
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Contract Number	[_____]
Contractor	[_____]
Haz/Waste or Regulated Waste POC	[_____]
Phone Number	[_____]
Type of Waste	[_____]
Source of Waste	[_____]
Emergency POC	[_____]
Phone Number	[_____]
Location of the Site	[_____]

Attach a Waste Determination form for the expected waste streams. Allow 10 working days for processing this request. Additional compliance requirements (e.g. training and contingency planning) that may be required are the responsibility of the Contractor. Barricade the designated area where waste is being stored and post a sign identifying as follows:

"DANGER - UNAUTHORIZED PERSONNEL KEEP OUT"

3.7.3.3 Hazardous Waste Disposal

3.7.3.3.1 Responsibilities for Contractor's Disposal

Provide hazardous waste manifest to the Installations Environmental Management Office for review, approval, and signature prior to shipping waste off Government property.

3.7.3.3.1.1 Services

Provide service necessary for the final treatment or disposal of the hazardous material or waste in accordance with 40 CFR 260, local, and state, laws and regulations, and the terms and conditions of the Contract within 60 days after the materials have been generated. These services include necessary personnel, labor, transportation, packaging, detailed analysis (if required for disposal or transportation, include manifesting or complete waste profile sheets, equipment, and compile documentation).

3.7.3.3.1.2 Samples

Obtain a representative sample of the material generated for each job done to provide waste stream determination.

3.7.3.3.1.3 Analysis

Analyze each sample taken and provide analytical results to the Contracting Officer. See paragraph WASTE DETERMINATION DOCUMENTATION.

3.7.3.3.1.4 Labeling

Determine the Department of Transportation's (DOT's) proper shipping names for waste (each container requiring disposal) and demonstrate to the Contracting Officer how this determination is developed and supported by the sampling and analysis requirements contained herein. Label all containers of hazardous waste with the words "Hazardous Waste" or other words to describe the contents of the container in accordance with 40 CFR 262.31 and applicable state or local regulations.

3.7.3.3.2 Contractor Disposal Turn-In Requirements

Hazardous waste generated must be disposed of in accordance with the following conditions to meet installation requirements:

- a. Drums must be compatible with waste contents and drums must meet DOT requirements for 49 CFR 173 for transportation of materials.
- b. Band drums to wooden pallets.
- c. No more than three 55 gallon drums or two 85 gallon over packs are to be banded to a pallet.
- d. Band using 1-1/4 inch minimum band on upper third of drum.
- e. Provide label in accordance with 49 CFR 172.101.
- f. Leave 3 to 5 inches of empty space above volume of material.

3.7.3.4 Universal Waste Management

Manage the following categories of universal waste in accordance with federal, state, and local requirements and installation instructions:

- a. Batteries as described in 40 CFR 273.2
- b. Lamps as described in 40 CFR 273.5
- c. Mercury-containing equipment as described in 40 CFR 273.4

Mercury is prohibited in the construction of this facility, unless specified otherwise, and with the exception of mercury vapor lamps and fluorescent lamps. Dumping of mercury-containing materials and devices such as mercury vapor lamps, fluorescent lamps, and mercury switches, in rubbish containers is prohibited. Remove without breaking, pack to prevent breakage, and transport out of the activity in an unbroken condition for disposal as directed.

3.7.3.5 Electronics End-of-Life Management

Recycle or dispose of electronics waste, including, but not limited to, used electronic devices such computers, monitors, hard-copy devices, televisions,

mobile devices, in accordance with 40 CFR 260-262, state, and local requirements, and installation instructions.

3.7.3.6 Disposal Documentation for Hazardous and Regulated Waste

Contact the Contracting Officer for the facility RCRA identification number that is to be used on each manifest.

Submit a copy of the applicable EPA and or state permit(s), manifest(s), or license(s) for transportation, treatment, storage, and disposal of hazardous and regulated waste by permitted facilities. Hazardous or toxic waste manifests must be reviewed, signed, and approved by the Contracting Officer before the Contractor may ship waste. To obtain specific disposal instructions, coordinate with the Installation Environmental Office.

3.7.4 Releases/Spills of Oil and Hazardous Substances

3.7.4.1 Response and Notifications

Exercise due diligence to prevent, contain, and respond to spills of hazardous material, hazardous substances, hazardous waste, sewage, regulated gas, petroleum, lubrication oil, and other substances regulated in accordance with 40 CFR 300. Maintain spill cleanup equipment and materials at the work site. In the event of a spill, take prompt, effective action to stop, contain, curtail, or otherwise limit the amount, duration, and severity of the spill/release. In the event of any releases of oil and hazardous substances, chemicals, or gases; immediately (within 15 minutes) notify the Installation Fire Department, the Installation Environmental Office, the Contracting Officer.

Submit written notification to the Contracting Officer of all spills regardless of substance or quantity using the MHAFFB Environmental Hazardous Material Release Report. Contain and clean up these spills without cost to the Government.

3.7.4.2 Clean Up

Clean up hazardous and non-hazardous waste spills. Reimburse the Government for costs incurred including sample analysis materials, clothing, equipment, and labor if the Government will initiate its own spill cleanup procedures, for Contractor- responsible spills, when: Spill cleanup procedures have not begun within one hour of spill discovery/occurrence; or, in the Government's judgment, spill cleanup is inadequate and the spill remains a threat to human health or the environment.

3.7.5 Mercury Materials

Immediately report to the Contracting Officer instances of breakage or mercury spillage. Clean mercury spill area to the satisfaction of the Contracting Officer.

Do not recycle a mercury spill cleanup; manage it as a hazardous waste for disposal.

3.7.6 Wastewater

3.7.6.1 Disposal of wastewater must be as specified below.

3.7.6.1.1 Treatment

Do not allow wastewater from construction activities, such as onsite material processing, concrete curing, foundation and concrete clean-up, water used in concrete trucks, and forms to enter water ways or to be discharged prior to being treated to remove pollutants. Dispose of the construction- related waste water off-Government property in accordance with 40 CFR 403, state, regional, and local laws and regulations.

3.7.6.1.2 Surface Discharge

For discharge of ground water, please coordinate with Contracting Officer for evaluation and approval.

3.8 HAZARDOUS MATERIAL MANAGEMENT

Include hazardous material control procedures in the Safety Plan, in accordance with Section 01 35 26 GOVERNMENTAL SAFETY REQUIREMENTS. Address procedures and proper handling of hazardous materials, including the appropriate transportation requirements. Do not bring hazardous material onto Government property that does not directly relate to requirements for the performance of this contract. Submit a list of hazardous materials with Safety Data Sheet (SDS) using MHAFFB Hazardous Materials Reporting Form to the Contracting Officer for review prior to bringing the materials onto base. If any chemical is denied approval to bring onto base, the contractor will need to find an acceptable substitute. Typical materials requiring SDS and quantity reporting include, but are not limited to, oil and latex based painting and caulking products, solvents, adhesives, aerosol, and petroleum products. Use hazardous materials in a manner that minimizes the amount of hazardous waste generated. Containers of hazardous materials must have National Fire Protection Association labels or their equivalent. Certify that hazardous materials removed from the site are hazardous materials and do not meet the definition of hazardous waste, in accordance with 40 CFR 261.

3.8.1 Contractor Hazardous Material Inventory Log

Submit the "Contractor Hazardous Material Inventory Log" (found at: <https://www.wbdg.org/FFC/NAVGRAPH/graphdoc.pdf>), which provides information required by (EPCRA Sections 312 and 313) along with corresponding SDS, to the Contracting Officer at the start and at the end of construction (30 days from final acceptance), and update no later than January 31 of each calendar year during the life of the contract. Keep copies of the SDSs for hazardous materials onsite. At the end of the project, provide the Contracting Officer with copies of the SDSs, and the maximum quantity of each material that was present at the site at any one time, the dates the material was present, the amount of each material that was used during the project, and how the material was used.

The Contracting Officer may request documentation for any spills or releases, environmental reports, or off-site transfers.

3.9 PREVIOUSLY USED EQUIPMENT

Clean previously used construction equipment prior to bringing it onto the project site. Equipment must be free from soil residuals, egg deposits from plant pests, noxious weeds, and plant seeds.

3.10 CONTROL AND MANAGEMENT OF ASBESTOS-CONTAINING MATERIAL (ACM)

Manage and dispose of asbestos- containing waste in accordance with 40 CFR 61. Manifest asbestos-containing waste and provide the manifest to the Contracting Officer. EPA Notification of Demolition and Renovation is due to the Idaho Department of Environmental Quality (IDEQ) 10 business days prior to starting any asbestos work. Submit a copy of the notification with IDEQ stamp or registered mail receipt to the Contracting Officer.

3.11 CONTROL AND MANAGEMENT OF LEAD-BASED PAINT (LBP)

Manage and dispose of lead-contaminated waste in accordance with 40 CFR 745. Manifest any lead-contaminated waste and provide the manifest to the Contracting Officer.

3.12 CONTROL AND MANAGEMENT OF POLYCHLORINATED BIPHENYLS (PCBS)

Manage and dispose of PCB-contaminated waste in accordance with 40 CFR 761.

3.13 CONTROL AND MANAGEMENT OF LIGHTING BALLAST AND LAMPS CONTAINING PCBS

Manage and dispose of contaminated waste in accordance with 40 CFR 761.

3.14 MILITARY MUNITIONS

In the event military munitions, as defined in 40 CFR 260, are discovered or uncovered, immediately stop work in that area and immediately inform the Contracting Officer.

3.15 PETROLEUM, OIL, LUBRICANT (POL) STORAGE AND FUELING

POL products include flammable or combustible liquids, such as gasoline, diesel, lubricating oil, used engine oil, hydraulic oil, mineral oil, and cooking oil. Store POL products and fuel equipment and motor vehicles in a manner that affords the maximum protection against spills into the environment. Manage and store POL products in accordance with EPA 40 CFR 112, and other federal, state, regional, and local laws and regulations. Use secondary containments, dikes, curbs, and other barriers, to prevent POL products from spilling and entering the ground, storm or sewer drains, stormwater ditches or canals, or navigable waters of the United States. Describe in the EPP (see paragraph ENVIRONMENTAL PROTECTION PLAN) how POL tanks and containers must be stored, managed, and inspected and what protections must be provided. Storage of fuel on the project site must be in accordance with EPA, state, and local laws and regulations and paragraph OIL STORAGE INCLUDING FUEL TANKS.

3.15.1 Used Oil Management

Manage used oil generated on site in accordance with 40 CFR 279. Determine if any used oil generated while onsite exhibits a characteristic of hazardous waste. Used oil containing 1,000 parts per million of solvents is considered a hazardous waste and disposed of at the Contractor's expense.

Used oil mixed with a hazardous waste is also considered a hazardous waste. Dispose in accordance with paragraph HAZARDOUS WASTE DISPOSAL.

3.15.2 Oil Storage Including Fuel Tanks

Provide secondary containment and overfill protection for oil storage tanks. A berm used to provide secondary containment must be of sufficient size and strength to contain the contents of the tanks plus 5 inches freeboard for precipitation. Construct the berm to be impervious to oil for 72 hours that no discharge will permeate, drain, infiltrate, or otherwise escape before cleanup occurs. Use drip pans during oil transfer operations; adequate absorbent material must be onsite to clean up any spills and prevent releases to the environment. Cover tanks and drip pans during inclement weather. Provide procedures and equipment to prevent overfilling of tanks. If tanks and containers with an aggregate aboveground capacity greater than 1320 gallons will be used onsite (only containers with a capacity of 55 gallons or greater are counted), provide and implement a SPCC plan meeting the requirements of 40 CFR 112. Do not bring underground storage tanks to the installation for Contractor use during a project. Submit the SPCC plan to the Contracting Officer for approval.

Monitor and remove any rainwater that accumulates in open containment dikes or berms. Inspect the accumulated rainwater prior to draining from a containment dike to the environment, to determine there is no oil sheen present.

3.16 INADVERTENT DISCOVERY OF PETROLEUM-CONTAMINATED SOIL OR HAZARDOUS WASTES

If petroleum-contaminated soil, or suspected hazardous waste is found during construction that was not identified in the Contract documents, immediately notify the Contracting Officer. Do not disturb this material until authorized by the Contracting Officer.

3.17 PEST MANAGEMENT

In order to minimize impacts to existing fauna and flora, coordinate with the Installation Pest Management Coordinator (IPMC), through the Contracting Officer, at the earliest possible time prior to pesticide application. Discuss integrated pest management strategies with the IPMC and receive concurrence from the IPMC through the Contracting Officer prior to the application of any pesticide associated with these specifications. Provide Installation Project Office Pest Management personnel the opportunity to be present at meetings concerning treatment measures for pest or disease control and during application of the pesticide. The use and management of pesticides are regulated under 40 CFR 152 - 186.

3.17.1 Application

Apply pesticides using a state-certified pesticide applicator in accordance with EPA label restrictions and recommendation. The certified applicator must wear clothing and personal protective equipment as specified on the pesticide label. The Contracting Officer will designate locations for water used in formulating. Do not allow the equipment to overflow. Inspect equipment for leaks, clogging, wear, or damage and repair prior to application of pesticide.

3.17.2 Pesticide Treatment Plan

Include and update a pesticide treatment plan, as information becomes available. Include in the plan the sequence of treatment, dates, times, locations, pesticide trade name, EPA registration numbers, authorized uses, chemical composition, formulation, original and applied concentration, application rates of active ingredient (that is, pounds of active ingredient applied), equipment used for application and calibration of equipment. Comply with 40 CFR 152-189, state, regional, and local pest management record-keeping and reporting requirements as well as any additional Installation Project Office specific requirements for data required to be reported to the Installation.

Spray tank filling may only be conducted at MHAFFB Entomology building (#1337) from Monday to Friday, 0700hrs to 1530hrs. To coordinate, contact Mr. David Ash, IPMC, at (208)828-6300.

3.18 SOILS

Evaluate excess soils and concrete foundation debris generated during the demolition of housing units or other wooden structures for the presence of chlordane or other pesticides prior to reuse or final disposal. Do not transport soil off the project site unless approval has been obtained from the Contracting Officer. The definition of "project site" is the immediate vicinity of the construction/demolition activities within the project boundaries.

All soils brought onto MHAFFB that will be used as un-encapsulated surface fill material must be approved by the Contracting Officer. If testing is required, test results must be provided to CEIE for approval/disapproval of material prior to coming on to MHAFFB.

All soils must also be approved by the Contracting Officer prior to being taken off-base. If testing is required, test results must be provided to CEIE for waste characterization determination of soils prior to disposal.

MHAFFB required analytical analysis of soils includes Method 8260 for Volatile Organic Compounds (VOCs), Method 8270 for Semi-volatile Organic Compounds (SVOCs), Methods 6010/7470 for RCRA (8) Metals, Method 8081 for Pesticides, and Method 8082 for PCBs to demonstrate non-contaminated before being accepted for use on the project site. Determination of the number of samples should be made by an environmental professional. An environmental professional must have: a state issued certification or license and three years of relevant full-time work experience; or a Baccalaureate degree or higher in science or engineering and five years of relevant full-time work experience; or ten years of relevant full-time work experience.

3.19 SOUND INTRUSION

Make the maximum use of low-noise emission products, as certified by the EPA. Blasting or use of explosives are not permitted without written permission from the Contracting Officer, and then only during the designated times.

Keep construction activities under surveillance and control to minimize environment damage by noise. Comply with the provisions of the State of Idaho rules.

3.20 POST CONSTRUCTION CLEANUP

Clean up areas used for construction in accordance with Contract Clause: "Cleaning Up". Unless otherwise instructed in writing by the Contracting Officer, remove traces of temporary construction facilities such as haul roads, work area, structures, foundations of temporary structures, stockpiles of excess or waste materials, and other vestiges of construction prior to final acceptance of the work. Grade parking area and similar temporarily used areas to conform with surrounding contours.

-- End of Section --